



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

July 22, 2024

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 16109
(THIRD REVISION)

EXPIRATION DATE:2028-06-30

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: CST Enterprises, LLC
dba Colibri Group
New York, NY
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of Division 2.1 hazardous materials in certain DOT Specification 2P non-refillable inside containers which have been tested by an alternative method in lieu of the hot water bath test and which are not fitted with a pressure relief device. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.304a(d)(3)(ii) in that containers without pressure relief devices are authorized to perform an alternative to the hot water bath test method, as provided herein.
5. BASIS: This special permit is based on the application of CST Enterprises, LLC dba Colibri Group dated June 1, 2024, submitted in accordance with § 107.109.

Tracking Number: 2024064032

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Butane see also Petroleum gases, liquefied	2.1	UN1011	N/A
Petroleum gases, liquefied or Liquefied petroleum gas	2.1	UN1075	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Packagings prescribed are DOT Specification 2P containers manufactured and marked in accordance with the requirements of 49 CFR § 178.33, and in accordance with the drawings and specifications on file with the Office of Hazardous Materials Safety (OHMS). The containers are filled to a maximum charge pressure of 45 psig at 70°F, or 105 psig at 130°F, and are not equipped with a pressure relief device. In addition to the manufacturing requirements of § 178.33, the manufacturer must subject each container to a pressure test to 145 psig (10 bar) and check for leaks.

b. OPERATIONAL CONTROLS:

(1) Prescribed containers must be packed in strong wooden or fiber boxes of such design as to protect valves from damage or accidental functioning under conditions normally incident to transportation.

(2) Each outside shipping container must be plainly marked “INSIDE CONTAINERS COMPLY WITH PROVISIONS OF DOT-SP 16109”.

(3) Prior to being offered for transportation, each filled container must be weighed and leak tested. The leak detection equipment shall be sufficiently sensitive to detect at least a leak rate of 2.0×10^{-3} mbar.l.s⁻¹ at 20°C (68°F). Any filled container that shows evidence of leakage, deformation or excessive weight must be rejected.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. In addition to the marking required for DOT 2P specification containers, each container must be plainly and durably marked "DOT-SP 16109" as specified in § 172.301(c).

9. MODES OF TRANSPORTATION AUTHORIZED: Motor Vehicle, Cargo Vessel, Rail Freight.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Jephthah Nti